

# SENATE CHAMBER

STATE OF OKLAHOMA

DISPOSITION

☒ FLOOR AMENDMENT

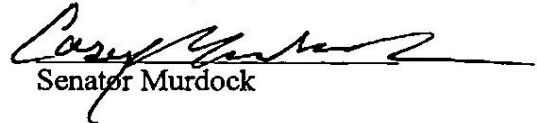
No. 1

☐ COMMITTEE AMENDMENT

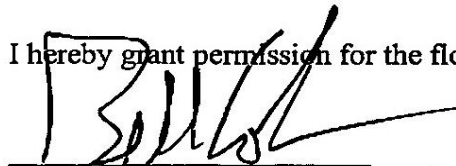
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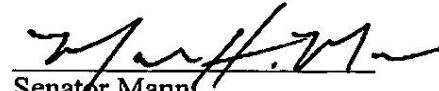
I move to amend Senate Bill No. 1944, by substituting the attached floor substitute (Request # 3740) for the title, enacting clause and entire body of the measure.

Submitted by:

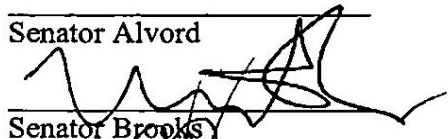
  
Senator Murdock

I hereby grant permission for the floor substitute to be adopted.

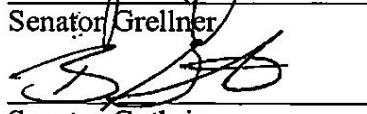
  
Senator Coleman, Chair (required)

  
Senator Mann

Senator Alvord

  
Senator Brooks

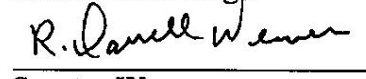
Senator Grellner

  
Senator Guthrie

Senator Pugh

Senator Reinhardt

  
Senator Standridge

  
Senator Weaver

Senator Paxton, President Pro Tempore

Senator Daniels, Majority Floor  
Leader

Note: Business and Insurance committee majority requires six (6) members' signatures.

Murdock-CAD-FS-SB1944  
2/25/2026 3:57 PM

(Floor Amendments Only)

Date and Time Filed: 3/2/26 2:05pm fd

☐ Untimely

☐ Amendment Cycle Extended

☐ Secondary Amendment

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE  
FOR

SENATE BILL NO. 1944

By: Murdock of the Senate

and

Newton of the House

FLOOR SUBSTITUTE

[ Administrative Workers' Compensation Act -  
definitions - effective date ]

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 85A O.S. 2021, Section 2, as  
amended by Section 1, Chapter 67, O.S.L. 2025 (85A O.S. Supp. 2025,  
Section 2), is amended to read as follows:

Section 2. As used in the Administrative Workers' Compensation  
Act:

1. "Actually dependent" means a surviving spouse, a child or  
any other person who receives one-half (1/2) or more of his or her  
support from the employee;

2. "Carrier" means any stock company, mutual company, or  
reciprocal or interinsurance exchange authorized to write or carry  
on the business of workers' compensation insurance in this state.

1 Whenever required by the context, the term carrier shall be deemed  
2 to include duly qualified self-insureds or self-insured groups;

3 3. "Case management" means the ongoing coordination, by a case  
4 manager, of health care services provided to an injured or disabled  
5 worker, including but not limited to systematically monitoring the  
6 treatment rendered and the medical progress of the injured or  
7 disabled worker; ensuring that any treatment plan follows all  
8 appropriate treatment protocols, utilization controls and practice  
9 parameters; assessing whether alternative health care services are  
10 appropriate and delivered in a cost-effective manner based upon  
11 acceptable medical standards; and ensuring that the injured or  
12 disabled worker is following the prescribed health care plan;

13 4. "Case manager" means a person who is a registered nurse with  
14 a current, active unencumbered license from the Oklahoma Board of  
15 Nursing, or possesses one or more of the following certifications  
16 which indicate the individual has a minimum number of years of case  
17 management experience, has passed a national competency test and  
18 regularly obtains continuing education hours to maintain  
19 certification:

- 20 a. Certified Disability Management Specialist (CDMS),
- 21 b. Certified Case Manager (CCM),
- 22 c. Certified Rehabilitation Registered Nurse (CRRN),
- 23 d. Case Manager - Certified (CMC),
- 24 e. Certified Occupational Health Nurse (COHN), or

1           f.    Certified Occupational Health Nurse Specialist (COHN-  
2               S);

3           5.    "Certified workplace medical plan" means an organization of  
4 health care providers or any other entity, certified by the State  
5 Commissioner of Health, that is authorized to enter into a  
6 contractual agreement with an employer, a group self-insurance  
7 association plan, an employer's workers' compensation insurance  
8 carrier, a third-party administrator or an insured to provide  
9 medical care under the Administrative Workers' Compensation Act.  
10 Certified plans shall only include plans which provide medical  
11 services and payment for services on a fee-for-service basis to  
12 medical providers;

13           6.    "Child" means a natural or adopted son or daughter of the  
14 employee under eighteen (18) years of age; or a natural or adopted  
15 son or daughter of an employee eighteen (18) years of age or over  
16 who is physically or mentally incapable of self-support; or any  
17 natural or adopted son or daughter of an employee eighteen (18)  
18 years of age or over who is actually dependent; or any natural or  
19 adopted son or daughter of an employee between eighteen (18) and  
20 twenty-three (23) years of age who is enrolled as a full-time  
21 student in any accredited educational institution. The term child  
22 includes a posthumous child, a child legally adopted or one for whom  
23 adoption proceedings are pending at the time of death, an actually  
24

1 dependent stepchild or an actually dependent acknowledged child born  
2 out of wedlock;

3 7. "Claimant" means a person who claims benefits for an injury  
4 or occupational disease pursuant to the provisions of the  
5 Administrative Workers' Compensation Act;

6 8. "Commission" means the Oklahoma Workers' Compensation  
7 Commission;

8 9. a. "Compensable injury" means damage or harm to the  
9 physical structure of the body, or damage or harm to  
10 prosthetic appliances, including eyeglasses, contact  
11 lenses, or hearing aids, of which the major cause is  
12 either an accident, cumulative trauma or occupational  
13 disease arising out of the course and scope of  
14 employment. An "accident" means an event involving  
15 factors external to the employee that:

16 (1) was unintended, unanticipated, unforeseen,  
17 unplanned and unexpected,

18 (2) occurred at a specifically identifiable time and  
19 place,

20 (3) occurred by chance or from unknown causes, or

21 (4) was independent of sickness, mental incapacity,  
22 bodily infirmity or any other cause.

23 b. Compensable injury does not include:  
24

- (1) injury to any active participant in assaults or combats which, although they may occur in the workplace, are the result of non-employment-related hostility or animus of one, both, or all of the combatants and which assault or combat amounts to a deviation from customary duties; provided, however, injuries caused by horseplay shall not be considered to be compensable injuries, except for innocent victims,
- (2) injury incurred while engaging in or performing or as the result of engaging in or performing any recreational or social activities for the employee's personal pleasure,
- (3) injury which was inflicted on the employee at a time when employment services were not being performed or before the employee was hired or after the employment relationship was terminated,
- (4) injury if the accident was caused by the use of alcohol, illegal drugs, or prescription drugs used in contravention of physician's orders. If a biological specimen is collected within twenty-four (24) hours of the employee being injured or reporting an injury, or if at any time after the injury a biological specimen is collected by the

Office of the Chief Medical Examiner if the injured employee does not survive for at least twenty-four (24) hours after the injury and the employee tests positive for intoxication, an illegal controlled substance, or a legal controlled substance used in contravention to a treating physician's orders, or refuses to undergo the drug and alcohol testing, there shall be a rebuttable presumption that the injury was caused by the use of alcohol, illegal drugs, or prescription drugs used in contravention of physician's orders. This presumption may only be overcome if the employee proves by clear and convincing evidence that his or her state of intoxication had no causal relationship to the injury,

- (5) any strain, degeneration, damage or harm to, or disease or condition of, the eye or musculoskeletal structure or other body part resulting from the natural results of aging, osteoarthritis, arthritis, or degenerative process including, but not limited to, degenerative joint disease, degenerative disc disease, degenerative

spondylosis/spondylolisthesis and spinal  
stenosis, or

(6) any preexisting condition except when the  
treating physician clearly confirms an  
identifiable and significant aggravation incurred  
in the course and scope of employment.

c. A compensable injury shall be established by medical  
evidence supported by objective findings as defined in  
paragraph 31 of this section.

d. The injured employee shall prove by a preponderance of  
the evidence that he or she has suffered a compensable  
injury.

e. Benefits shall not be payable for a condition which  
results from a non-work-related independent  
intervening cause following a compensable injury which  
causes or prolongs disability or aggravation or  
requires treatment. A non-work-related independent  
intervening cause does not require negligence or  
recklessness on the part of a claimant.

f. An employee who suffers a compensable injury shall be  
entitled to receive compensation as prescribed in the  
Administrative Workers' Compensation Act.

Notwithstanding other provisions of law, if it is  
determined that a compensable injury did not occur,



1           the employee shall not be entitled to compensation  
2           under the Administrative Workers' Compensation Act;

3       10. "Compensation" means the money allowance payable to the  
4 employee or to his or her dependents and includes the medical  
5 services and supplies provided for in Section 50 of this title and  
6 funeral expenses;

7       11. "Consequential injury" means injury or harm to a part of  
8 the body that is a direct result of the injury or medical treatment  
9 to the part of the body originally injured in the claim. The  
10 Commission shall not make a finding of a consequential injury unless  
11 it is established by objective medical evidence that medical  
12 treatment for such part of the body is required;

13       12. "Continuing medical maintenance" means medical treatment  
14 that is reasonable and necessary to maintain a claimant's condition  
15 resulting from the compensable injury or illness after reaching  
16 maximum medical improvement. Continuing medical maintenance shall  
17 not include diagnostic tests, surgery, injections, counseling,  
18 physical therapy, or pain management devices or equipment;

19       13. "Course and scope of employment" means an activity of any  
20 kind or character for which the employee was hired and that relates  
21 to and derives from the work, business, trade or profession of an  
22 employer, and is performed by an employee in the furtherance of the  
23 affairs or business of an employer. The term includes activities  
24 conducted on the premises of an employer or at other locations

1 designated by an employer and travel by an employee in furtherance  
2 of the affairs of an employer that is specifically directed by the  
3 employer. This term does not include:

- 4       a. an employee's transportation to and from his or her  
5           place of employment,
- 6       b. travel by an employee in furtherance of the affairs of  
7           an employer if the travel is also in furtherance of  
8           personal or private affairs of the employee,
- 9       c. any injury occurring in a parking lot or other common  
10           area adjacent to an employer's place of business  
11           before the employee clocks in or otherwise begins work  
12           for the employer or after the employee clocks out or  
13           otherwise stops work for the employer unless the  
14           employer owns or maintains exclusive control over the  
15           area, or
- 16       d. any injury occurring while an employee is on a work  
17           break, unless the injury occurs while the employee is  
18           on a work break inside the employer's facility or in  
19           an area owned by or exclusively controlled by the  
20           employer and the work break is authorized by the  
21           employee's supervisor;

22       14. "Cumulative trauma" means an injury to an employee that is  
23 caused by the combined effect of repetitive physical activities  
24 extending over a period of time in the course and scope of

1 employment. Cumulative trauma shall not mean fatigue, soreness or  
2 general aches and pain that may have been caused, aggravated,  
3 exacerbated or accelerated by the employee's course and scope of  
4 employment. Cumulative trauma shall have resulted directly and  
5 independently of all other causes;

6 15. "Death" means only death resulting from compensable injury  
7 as defined in paragraph 9 of this section;

8 16. "Disability" means incapacity because of compensable injury  
9 to earn, in the same or any other employment, substantially the same  
10 amount of wages the employee was receiving at the time of the  
11 compensable injury;

12 17. "Drive-away operations" includes every person engaged in  
13 the business of transporting and delivering new or used vehicles by  
14 driving, either singly or by towbar, saddle-mount or full-mount  
15 method, or any combination thereof, with or without towing a  
16 privately owned vehicle;

17 18. a. "Employee" means any person, including a minor, in the  
18 service of an employer under any contract of hire or  
19 apprenticeship, written or oral, expressed or implied,  
20 but excluding one whose employment is casual and not  
21 in the course of the trade, business, profession, or  
22 occupation of his or her employer and excluding one  
23 who is required to perform work for a municipality or  
24 county or the state or federal government on having

1           been convicted of a criminal offense or while  
2           incarcerated. Employee shall also include a member of  
3           the Oklahoma National Guard while in the performance  
4           of duties only while in response to state orders and  
5           any authorized voluntary or uncompensated worker,  
6           rendering services as a firefighter, law enforcement  
7           officer or emergency management worker. Travel by a  
8           police officer, fireman, or a member of a first aid or  
9           rescue squad, in responding to and returning from an  
10          emergency, shall be deemed to be in the course of  
11          employment.

12          b. The term employee shall not include:

- 13           (1) any person for whom an employer is liable under  
14           any Act of Congress for providing compensation to  
15           employees for injuries, disease or death arising  
16           out of and in the course of employment including,  
17           but not limited to, the Federal Employees'  
18           Compensation Act, the Federal Employers'  
19           Liability Act, the Longshore and Harbor Workers'  
20           Compensation Act and the Jones Act, to the extent  
21           his or her employees are subject to such acts,  
22           (2) any person who is employed in agriculture,  
23           ranching or horticulture by an employer who had a  
24           gross annual payroll in the preceding calendar

1 year of less than ~~One Hundred Thousand Dollars~~  
2 ~~(\$100,000.00)~~ Two Hundred Fifty Thousand Dollars  
3 (\$250,000.00) in wages for agricultural, ranching  
4 or horticultural workers, or any person who is  
5 employed in agriculture, ranching or horticulture  
6 who is not engaged in operation of motorized  
7 machines. This exemption applies to any period  
8 of time for which such employment exists,  
9 irrespective of whether or not the person is  
10 employed in other activities for which the  
11 exemption does not apply. If the person is  
12 employed for part of a year in exempt activities  
13 and for part of a year in nonexempt activities,  
14 the employer shall be responsible for providing  
15 workers' compensation only for the period of time  
16 for which the person is employed in nonexempt  
17 activities. This exemption applies to an  
18 independent contractor who meets at least four of  
19 the following conditions:  
20 (a) performs specific services or work for a  
21 specific payment and controls how the work  
22 is performed,  
23  
24

1           (b) can perform work for others at his or her  
2           own election without going through an  
3           employment process,

4           (c) receives compensation on a per-job,  
5           competitive-bid, or contract basis, not as  
6           an employee,

7           (d) may incur profit or loss from performing the  
8           work based on business receipts instead of  
9           expenditures, or

10          (e) has continuing business obligations,  
11          liabilities, and a chance of profit or loss,

12          (3) any person who is a licensed real estate sales  
13          associate or broker, paid on a commission basis,

14          (4) any person employed by an employer with five or  
15          fewer total employees, all of whom are related  
16          within the second degree by blood or marriage to  
17          the employer, all of whom are dependents living  
18          in the household of the employer, or all of whom  
19          are a combination of such relatives and  
20          dependents. If the employer is not a natural  
21          person such relative shall be related within the  
22          second degree by blood or marriage to a person  
23          who owns fifty percent (50%) or more of the  
24          employer, or such dependent shall be in the

household of a person who owns fifty percent  
(50%) or more of the employer,

(5) any person employed by an employer which is a  
youth sports league which qualifies for exemption  
from federal income taxation pursuant to federal  
law,

(6) sole proprietors, members of a partnership,  
individuals who are party to a franchise  
agreement as set out by the Federal Trade  
Commission franchise disclosure rule, 16 CFR  
436.1 through 436.11, members of a limited  
liability company who own at least ten percent  
(10%) of the capital of the limited liability  
company or any stockholder-employees of a  
corporation who own ten percent (10%) or more  
stock in the corporation, unless they elect to be  
covered by a policy of insurance covering  
benefits under the Administrative Workers'  
Compensation Act,

(7) any person providing or performing voluntary  
service who receives no wages for the services  
other than meals, drug or alcohol rehabilitative  
therapy, transportation, lodging or reimbursement  
for incidental expenses except for volunteers

specifically provided for in subparagraph a of  
this paragraph,

- (8) a person, commonly referred to as an owner-operator, who owns or leases a truck-tractor or truck for hire, if the owner-operator actually operates the truck-tractor or truck and if the person contracting with the owner-operator is not the lessor of the truck-tractor or truck.

Provided, however, an owner-operator shall not be precluded from workers' compensation coverage under the Administrative Workers' Compensation Act if the owner-operator elects to participate as a sole proprietor,

- (9) a person referred to as a drive-away owner-operator who privately owns and utilizes a tow vehicle in drive-away operations and operates independently for hire, if the drive-away owner-operator actually utilizes the tow vehicle and if the person contracting with the drive-away owner-operator is not the lessor of the tow vehicle.

Provided, however, a drive-away owner-operator shall not be precluded from workers' compensation coverage under the Administrative Workers'



1 Compensation Act if the drive-away owner-operator  
2 elects to participate as a sole proprietor,  
3 (10) any person who is employed as a domestic servant  
4 or as a casual worker in and about a private home  
5 or household, which private home or household had  
6 a gross annual payroll in the preceding calendar  
7 year of less than Fifty Thousand Dollars  
8 (\$50,000.00) for such workers, and  
9 (11) any person engaging in a temporary work  
10 arrangement that allows the individual to observe  
11 a work environment and gain work experience  
12 without the expectation of financial  
13 compensation;

14 19. "Employer" means a natural person, partnership,  
15 association, limited liability company, corporation, and the legal  
16 representatives of a deceased employer, or the receiver or trustee  
17 of a person, partnership, association, corporation, or limited  
18 liability company, departments, instrumentalities and institutions  
19 of this state and divisions thereof, counties and divisions thereof,  
20 public trusts, boards of education and incorporated cities or towns  
21 and divisions thereof, employing a person included within the term  
22 employee as defined in this section. Employer may also mean the  
23 employer's workers' compensation insurance carrier, if applicable.  
24 Except as provided otherwise, the Administrative Workers'

1 Compensation Act applies to all public and private entities and  
2 institutions;

3 20. "Employment" includes work or labor in a trade, business,  
4 occupation or activity carried on by an employer or any authorized  
5 voluntary or uncompensated worker rendering services as a  
6 firefighter, peace officer or emergency management worker;

7 21. "Evidence-based" means expert-based, literature-supported  
8 and outcomes validated by well-designed randomized trials when such  
9 information is available and which uses the best available evidence  
10 to support medical decision making;

11 22. "Gainful employment" means the capacity to perform  
12 employment for wages for a period of time that is not part-time,  
13 occasional or sporadic;

14 23. "Impaired self-insurer" means a private self-insurer or  
15 group self-insurance association that fails to pay its workers'  
16 compensation obligations, or is financially unable to do so and is  
17 the subject of any proceeding under the Federal Bankruptcy Reform  
18 Act of 1978, and any subsequent amendments or is the subject of any  
19 proceeding in which a receiver, custodian, liquidator,  
20 rehabilitator, trustee or similar officer has been appointed by a  
21 court of competent jurisdiction to act in lieu of or on behalf of  
22 the self-insurer;

23 24. "Incapacity" means inadequate strength or ability to  
24 perform a work-related task;

1       25. "Insurance Commissioner" means the Insurance Commissioner  
2 of this state;

3       26. "Insurance Department" means the Insurance Department of  
4 this state;

5       27. "Major cause" means more than fifty percent (50%) of the  
6 resulting injury, disease or illness. A finding of major cause  
7 shall be established by a preponderance of the evidence. A finding  
8 that the workplace was not a major cause of the injury, disease or  
9 illness shall not adversely affect the exclusive remedy provisions  
10 of the Administrative Workers' Compensation Act and shall not create  
11 a separate cause of action outside the Administrative Workers'  
12 Compensation Act;

13       28. "Maximum medical improvement" means that no further  
14 material improvement would reasonably be expected from medical  
15 treatment or the passage of time;

16       29. "Medical services" means those services specified in  
17 Section 50 of this title;

18       30. "Misconduct" shall include the following:

- 19           a. unexplained absenteeism or tardiness,
- 20           b. willful or wanton indifference to or neglect of the  
21               duties required,
- 22           c. willful or wanton breach of any duty required by the  
23               employer,

24

- d. the mismanagement of a position of employment by action or inaction,
- e. actions or omissions that place in jeopardy the health, life, or property of self or others,
- f. dishonesty,
- g. wrongdoing,
- h. violation of a law, or
- i. violation of a policy or rule adopted to ensure orderly work or the safety of self or others;

31. a. (1) "Objective findings" are those findings which cannot come under the voluntary control of the patient.

(2) (a) When determining permanent disability, a physician, any other medical provider, an administrative law judge, the Commission or the courts shall not consider complaints of pain.

(b) For the purpose of making permanent disability ratings to the spine, physicians shall use criteria established by the Sixth Edition of the American Medical Association "Guides to the Evaluation of Permanent Impairment".

1                   (3)   (a)   Objective evidence necessary to prove  
2                               permanent disability in occupational hearing  
3                               loss cases may be established by medically  
4                               recognized and accepted clinical diagnostic  
5                               methodologies, including, but not limited  
6                               to, audiological tests that measure air and  
7                               bone conduction thresholds and speech  
8                               discrimination ability.

9                   (b)   Any difference in the baseline hearing  
10                              levels shall be confirmed by subsequent  
11                              testing; provided, however, such test shall  
12                              be given within four (4) weeks of the  
13                              initial baseline hearing level test but not  
14                              before five (5) days after being adjusted  
15                              for presbycusis.

16           b.    Medical opinions addressing compensability and  
17                   permanent disability shall be stated within a  
18                   reasonable degree of medical certainty;

19           32.   "Official Disability Guidelines" or "ODG" means the current  
20   edition of the Official Disability Guidelines and the ODG Treatment  
21   in Workers' Comp as published by the Work Loss Data Institute;

22           33.   "Permanent disability" means the extent, expressed as a  
23   percentage, of the loss of a portion of the total physiological  
24   capabilities of the human body as established by competent medical

1 evidence and based on the Sixth Edition of the American Medical  
2 Association "Guides to the Evaluation of Permanent Impairment", if  
3 the impairment is contained therein;

4 34. "Permanent partial disability" means a permanent disability  
5 or loss of use after maximum medical improvement has been reached  
6 which prevents the injured employee, who has been released to return  
7 to work by the treating physician, from returning to his or her pre-  
8 injury or equivalent job. All evaluations of permanent partial  
9 disability must be supported by objective findings;

10 35. "Permanent total disability" means, based on objective  
11 findings, incapacity, based upon accidental injury or occupational  
12 disease, to earn wages in any employment for which the employee may  
13 become physically suited and reasonably fitted by education,  
14 training, experience or vocational rehabilitation provided under the  
15 Administrative Workers' Compensation Act. Loss of both hands, both  
16 feet, both legs, or both eyes, or any two thereof, shall constitute  
17 permanent total disability;

18 36. "Preexisting condition" means any illness, injury, disease,  
19 or other physical or mental condition, whether or not work-related,  
20 for which medical advice, diagnosis, care or treatment was  
21 recommended or received preceding the date of injury;

22 37. "Pre-injury or equivalent job" means the job that the  
23 claimant was working for the employer at the time the injury  
24 occurred or any other employment offered by the claimant's employer

1 that pays at least one hundred percent (100%) of the employee's  
2 average weekly wage;

3 38. "Private self-insurer" means a private employer that has  
4 been authorized to self-insure its workers' compensation obligations  
5 pursuant to the Administrative Workers' Compensation Act, but does  
6 not include group self-insurance associations authorized by the  
7 Administrative Workers' Compensation Act, or any public employer  
8 that self-insures pursuant to the Administrative Workers'  
9 Compensation Act;

10 39. "Prosthetic" means an artificial device used to replace a  
11 part or joint of the body that is lost or injured in an accident or  
12 illness covered by the Administrative Workers' Compensation Act;

13 40. "Scheduled member" or "member" means hands, fingers, arms,  
14 legs, feet, toes, and eyes. In addition, for purposes of the  
15 Multiple Injury Trust Fund only, scheduled member means hearing  
16 impairment;

17 41. "Scientifically based" involves the application of  
18 rigorous, systematic, and objective procedures to obtain reliable  
19 and valid knowledge relevant to medical testing, diagnoses and  
20 treatment; is adequate to justify the general conclusions drawn; and  
21 has been accepted by a peer-review journal or approved by a panel of  
22 independent experts through a comparably rigorous, objective, and  
23 scientific review;

24

1        42. "State average weekly wage" means the state average weekly  
2 wage determined by the Oklahoma Employment Security Commission in  
3 the preceding calendar year. If such determination is not  
4 available, the Commission shall determine the wage annually after  
5 reasonable investigation;

6        43. "Subcontractor" means a person, firm, corporation or other  
7 legal entity hired by the general or prime contractor to perform a  
8 specific task for the completion of a work-related activity;

9        44. "Surgery" does not include an injection, or the forcing of  
10 fluids beneath the skin, for treatment or diagnosis;

11       45. "Surviving spouse" means the employee's spouse by reason of  
12 a legal marriage recognized by this state or under the requirements  
13 of a common law marriage in this state, as determined by the  
14 Oklahoma Workers' Compensation Commission;

15       46. "Temporary partial disability" means an injured employee  
16 who is temporarily unable to perform his or her job, but may perform  
17 alternative work offered by the employer;

18       47. "Time of accident" or "date of accident" means the time or  
19 date of the occurrence of the accidental incident from which  
20 compensable injury, disability, or death results; and

21       48. "Wages" means money compensation received for employment at  
22 the time of the accident, including the reasonable value of board,  
23 rent, housing, lodging, or similar advantage received from the  
24 employer and includes the amount of tips required to be reported by



1 the employer under Section 6053 of the Internal Revenue Code and the  
2 regulations promulgated pursuant thereto or the amount of actual  
3 tips reported, whichever amount is greater.

4 SECTION 2. This act shall become effective November 1, 2026.

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